The 3 branches of government: the US vs Israel

שלוש הרשויות: ארה"ב מול ישראל

The full guide behind the reel. In one line: in the US the branches are separated by a written constitution; in Israel the government sits inside the Knesset, and there is no single written constitution.

המדריך המלא מאחורי הסרטון. בשורה אחת: בארה"ב הרשויות מופרדות בחוקה כתובה; בישראל הממשלה יושבת בתוך הכנסת, ואין חוקה כתובה אחת.

The United States — ארצות הברית

- Legislative branch makes laws, executive carries them out, judicial interprets them; each checks the others (checks and balances).
- No person holding any office under the United States may be a member of either house of Congress (Art. I, Sec. 6, Cl. 2).
- Congress has two houses: a House of Representatives elected every two years and a Senate of two senators per state.
- The President nominates, and with the advice and consent of the Senate appoints, Supreme Court justices (Art. II).
- The US Constitution was signed on 17 September 1787.
- A vetoed bill becomes law if two thirds of both houses pass it again (Art. I, Sec. 7).

Israel — ישראל

- The Knesset has 120 members elected for four-year terms.
- The PM is appointed after consultation with the parties and the government needs a Knesset vote of confidence. The PM (and designated alternate) must be a Knesset member; most other ministers are MKs but are not required to be.
- Israel has no single written constitution; Basic Laws are meant to be chapters of a future constitution.
- Israel's President is head of state in a mostly, though not entirely, ceremonial role, elected by the Knesset for a single seven-year term.
- The Judicial Selection Committee has 9 members: the Supreme Court President and 2 other Supreme Court justices, the Justice Minister (chair) and 1 other minister, 2 Knesset members, 2 Israel Bar Association representatives. Supreme Court appointments need 7 of 9.
- The Supreme Court also sits as the High Court of Justice (Basic Law: Judicature, Sec. 15(c)).
- The reasonableness amendment (Amendment No. 3 to Basic Law: The Judiciary) passed 24 July 2023 and eliminated review of the reasonableness of decisions of the government, PM and ministers. On 1 January 2024 (HCJ 5658/23) the Supreme Court voided it, 8 of 15 justices; 12 of 15 held the court may review Basic Laws in exceptional, extreme cases.
- Basic Law: The Judiciary (Amendment No. 4) passed 27 March 2025, 67 to 1 (opposition boycotted). It replaces the 2 Bar representatives with 2 lawyers chosen by coalition and opposition MKs, and lowers the Supreme Court threshold to 5 votes including one coalition-side and one opposition-side member. It takes effect when the next Knesset begins its term.
- As of 18 October 2026 the High Court has not ruled on the petitions against the 2025 law: an 11-justice panel heard them (June 2026), conditional orders were issued, final submissions were filed in late July 2026, and no ruling is reported through 8 Oct 2026. The next Knesset is elected on 27 Oct 2026.

> **The debate, both sides:** supporters of reform argue the court has too much power over elected officials; opponents argue the court is the main check, because the government and the Knesset are fused and there is no full constitution. Facts as of 18 October 2026.

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